REVERSIONS, ABOLISHMENTS, WHAT SHOULD I DO?



IS IT A REVERSION OR AN ABOLISHMENT?



REVERSION

Article 37.1.F defines a reversion as, “A management decision to reduce the number of duty assignments in an installation when such duty assignment(s) is/are ***vacant***.”

ABOLISHMENT

Article 37.1.E defines an abolishment as, “A management decision to reduce the number of ***occupied*** duty assignment(s) in an established section and/or installation.”

The Postal Service has a variety of programs that are being used to determine staffing. Some of these are the F-1 Scheduler, Job Bid Management, Workforce Dashboard, Customer Service Variance (CSV) Reports, PS Form 150, SOV, e1994, etc.

All of these programs have a common thread in them. The staffing numbers that these programs generate are based upon “earned hours”.

Postal Service Use of Earned Hours/Earned Complement

It is the Union's position that the Postal Service's use of "earned hours" using systems and tools

that pre-date the negotiated contractual language of Article 37.3.A.1 violates the contract.

Nowhere in the CBA does the term "earned hours" appear. The parties at the national level know

how to negotiate language. The parties would have used the term "earned hours" if they meant to

say so.

Since the Postal Service cannot cite any contractual provisions that recognize the concept of “earning” a full-time duty assignment and, in contrast, the parties have mutually accepted the use of MDAT developed in conjunction with Article 37.3.A.1, including the use of PSE hours, the Union argues that we have a prima facie case, thereby shifting the burden of proof to the Postal Service.

The Union further argues the concept of “earned complement” has

neither been identified in contract language nor in case law. Prior to this added language in

Article 37, the Postal Service took the position in a national 2009 Article 34 Work and/or Time

Standards dispute that there was no time and/or work standard in the clerk craft. Article 37.3.A.1

negotiated contract language obligates the Postal Service to make every effort to create desirable

duty assignments using all available work hours.

Article 37.3.A.1 clearly states, “Every effort will be made to create desirable duty assignments from all available work hours for career employees to bid.”

Postal Support Employees are working in what constitutes full-time duty assignments. These are available work hours.

REVERSIONS

Article 37.3.A.2 in the Joint Contract Interpretation Manual outlines the three steps that management must take when proposing to revert a duty assignment.

1. “Give the local union president the opportunity for input prior to making the final decision.”

2. “The final decision to revert must be made within 28 days of the vacancy.”

3. “A notice must be posted advising of the reversion and the reasons therefor.”

As the Local President, what should I do?



Make an initial argument that the actual work hours support the fact that the duty assignment(s) still exist.

The Local President should submit a Request for Information as soon as possible to support his or her arguments and any additional arguments being made once the requested information has been provided.



Request any and all information and documentation relied upon to propose the reversion of the assignment(s).



What specific information should be requested?



1. All PSE Clock Rings at the Installation in **PDF and CSV** Format separated the following areas; Automated Letters T-3, automated Letters T-2, Manual Outgoing T-3, SPBS T-3, SPBS T-2, SWYB T-3, Automated Flats T-1, Automated Letters T-, Station, Branch, Post Office, and/or any Section identified in Item 18 of the Local Memorandum of Understanding (LOU) for the following **full weeks, 4-month period.**

   Pay Period_____Week_____ through Pay Period _____ Week_____

2. All emails, correspondence, directives, letters, etc., between the Installation Head and USPS HQ, Area, District management pertaining to attached proposed bid reversion(s) and/or abolishment(s), if any.

3. The name and title of the Installation Head who made the final decision to revert/abolish each duty assignment.

4. If the Installation Head was not the deciding official, provide the name and EAS title of the deciding official who made the final decision to revert/abolish each position.

5. Copy of any request(s) the Installation Head made to fill the attached proposed reversion(s) and/or abolishment(s), if any and any replies to the request(s).

6. Copies of all instructions given by USPS HQ/Area/District to revert/abolish the attached list of proposed bid reversion(s), abolishment(s), if any.

7. Copies of all recommendations given by USPS HQ/Area/District to revert the proposed reversion(s) and/or abolishment(s), if any, whether before the proposed reversion(s)/abolishment(s) notice, if any and/or after the request by the Installation Head to post the duty assignment(s).

8. Request clock rings for all full-time employees for the full 4-week period immediately prior to each abolished duty assignment(s) being vacated by the incumbent clerk(s) in CSV and PDF format separated by section as identified in item #1 above.

9. Request clock rings for the **PSEs** for the full 4-week period immediately prior to each **proposed reversion(s) assignment** being vacated after the final decision is made to revert in PDF and CSV separated by section as stated in #1 above.

10. What operational changes or equipment removal is the section(s) experiencing where the proposed reversion(s) and/or abolishment(s) are taking place, if any. Please provide supporting documentation.

11. Provide documentation of employees being placed on standby time (Operation 340 for F-1 and Operation 353 for F-4) in the section(s) where the proposed duty assignment reversion(s) and/or duty assignment abolishment(s), if any are taking place for the **full 4-week period** prior to each vacancy of the bids in the attached proposed reversion(s) and/or abolishment(s), if any. Please provide supporting documentation.

12. *****All PSE Clock Rings at the Installation in PDF and CSV Format separated in the following areas; Automated Letters T-3, Automated Letters T-2, Manual Outgoing T-3, SPBS T-3, SPBS T-2, SWYB T-3, Automated Flats T-1, Automated Letters T-1, Station, Branch, Post Office, and/or any Section identified in Item 18 of the Local Memorandum of Understanding (LMOU) on a continuing basis every pay period for the next nine pay periods.*

13. Provide the section(s) overtime alert report(s) for the **full 4-week period** prior to each vacancy in the section(s) where the proposed bid reversion(s) and/or abolishment(s), if any, are taking place.

14. *****Provide the overtime alert report(s) in the section(s) where the proposed bid reversion(s) and/or abolishment(s) were implemented, if any, on a continuing basis every pay period for the next 9 pay periods after the reversion(s) and/or abolishment(s).*

15. Provide supporting documentation where the Postal Service openly solicited, requested or offered employees liberal annual leave for the **full 4-week period** prior to the vacancy of the bid(s) in the section(s) where the proposed reversion(s) and/or abolishment(s) are taking place.

16. Copies of all requests for leave (Approved or Denied) for the **full 4-week period** prior in the section(s) where each proposed bid reversion(s) and/or abolishment(s), if any, are taking place.

17. Clock rings in PDF and CSV format for any temporarily assigned injured employees working in the Clerk Craft, not holding a bid in the installation, separated by sections identified in item 18 of the LMOU in the same section(s) where each proposed reversion(s) and/or abolishment(s) are taking place for the **full 4-week period** prior to each vacancy of the bids in the attached proposed bid reversion(s) and/or abolishment(s), if any.

18. Request LTATS loaned employee report(s) for the following **full weeks, four-month period**.

Pay Period___ Week____ through Pay Period___Week___

19. Request letter carrier clock rings for the following four-month period in a customer service Function 4 operation in PDF format, in the facility where the proposed reversion(s) and/or abolishment(s) were identified.

Pay Period___ Week____ through Pay Period___Week___

20. Request copies of all Step One, Step Two, Step Three, Pre-Arbitration settlements and arbitration awards related to the installation posting and awarding of duty assignments in accordance with Article 37.3 and Article 15.4 within the last four months.

21. Copies of the prior four installation bid postings and corresponding award notices.

22. Copies of all installation final reversion decisions and abolishment(s) for the prior four bid cycles.

23. Copies of clerk TACS Schedule Report(s) for the past full four-week period for the pay location(s), operation(s)/section(s) of where each proposed reversion(s) and/or abolishment(s) are taking place.

Pay Period___Week ___through Pay Period___Week___

24. Request copies of the current F-1 Scheduler for Function 1 offices.

25. Request copies of the CSV, SOV, F-4 Audits, e1994, PS150 for Function 4 offices.

Use the information provided to put together arguments as to why the duty assignment should not be reverted.

Run the clock rings for the PSEs who are working in the section within which duty assignment(s) are being reverted in the MDAT (Maximization/Duty Assignment Tool) program to determine if the PSEs are working in what constitutes full-time duty assignments.



In the event the Postal Service fails to provide the requested information, the Union will make an adverse inference argument.

Input should ***always*** be provided and should be provided in writing. This should be done either by certified mail with return receipt or e-mail with a courtesy copy to self.

As the Steward, what should I do when the USPS reverts the position(s)?



Look first at the three steps listed in Article 37.3.A.2 of the JCIM. Did management fail to meet any one of the three steps listed? If so, ensure that the procedural argument(s) are made.

Was the Local President given an opportunity to provide input?

There is more to meeting this requirement than the postmaster or manager just sending a letter to the Local President asking for input.

Does the letter requesting input give information as to why the position is under consideration for reversion?

The Local President cannot provide meaningful input if the USPS doesn't give information as to why the duty assignment is under consideration for reversion.

Was the President provided with enough time to provide meaningful input?

The USPS gets 28 days to revert a duty assignment. The Union should be allowed more than 2 or 3 days to provide input.

Was the final decision to revert the duty assignment made within 28 days of the vacancy?

It is not enough to state that the duty assignment wasn't reverted within 28 days of the vacancy. The Union must prove it!

Was a notice posted advising of the reversion and the reasons therefor?

It is not enough to provide notice to the Local President, the notice ***must*** be posted.

The notice that is posted ***must*** contain the reason(s) for the reversion.

Look closely at the documents that have been provided. Was the decision to revert pre-textual? Does the letter requesting input state that the duty assignment will be reverted rather than under consideration for reversion? Look at the dates on the documents. Were the duty assignment(s) reverted before input was provided?

What documentation needs to be included in the grievance file?



1. A copy of the letter requesting input from the Local President.

2. A copy of the input provided by the Local President.

3. A copy of the notice that was posted concerning the reversion of the duty assignment.

4. A copy of the position description.

5. A copy of the vacancy notice, bid posting demonstrating the effective date on which the clerk was officially placed into another duty assignment, or notice of the effective date of a clerk's retirement.

6. Copies of any Requests for Information related to the reversion of the duty assignment(s).

7. Copies of any and all information that was provided to the Local President and Steward.

8. A copy of the notice posted advising of the reversion and the reason(s) therefor. This should have an accurate date. If it does not have an accurate date, the Union must obtain witness statements as to the date that it was actually posted.

What contract articles should be cited?



1. Article 37.3.A.1 should always be cited.

2. Article 37.3.A.2 if the USPS failed to meet any one of the three steps cited.

3. Article 1 if you are citing Bargaining Unit Work being performed by management.

4. Article 7 if you are arguing that employees from other crafts are performing work in the Clerk Craft.

5. Article 8.
6. Article 13 if light/limited duty employees from other crafts are performing work where the duty assignment(s) are being reverted or abolished. Also, as per Article 13.4.M, “Management must give the local union president advance written notification when it is proposed to reassign an ill or injured light or limited duty employee to a cross-craft assignment into a APWU represented craft.”

7. Article 19
8. Handbook EL-312 – Section 211.3 which states, “When a vacancy is anticipated, the ***installation head*** must determine if a continuing need exists for the position.”

8. Article 17.3 – “The steward, chief steward or other Union representative properly certified in accordance with Section 2 above may request and shall obtain access through the appropriate supervisor to review the documents, files and other records necessary for processing a grievance or determining if a grievance exists and shall have the right to interview the aggrieved employee(s), supervisors and witnesses during working hours.”

9. Article 31.3 – “The Employer will make available for inspection by the Union all relevant information necessary for collective bargaining or the enforcement, administration or interpretation of this Agreement, including information necessary to determine whether to file or to continue the processing of a grievance under this Agreement.”

Arbitration Decisions on Reversions

Arbitrator Escamilla E98C-4E-C 99275834

5-day notice to the union for reversion input was not sufficient time for the union to prepare its input.

Arbitrator Buckalew B10C-4B-C 15182470

4-day notice to the union of intent to revert the position was insufficient notice.

Arbitrator Vaile EO6C-4E-C 10078621

"The decision to revert the bid was made by higher management when a Job Review identified it for reversion upon Bessinger's retirement. Also telling is the notice of reversion which completely failed to address any input offered by the union. A decline in mail volume has little effect on window operations. These facts support the position that the USPS is systematically reverting all or many FT jobs as they become vacant, without due consideration of legitimate needs and the obligation to maximize full time positions."

Arbitrator Escamilla EO6C-1E-C 08120019

"The USPS violated Art. 37.3.A.2 when it failed to include the reasons for the reversion in the posted notice of reversion. The USPS is directed to post the reverted position for bid."

Arbitrator Miles COOC-4C-C 04095516

"In this case, there were no procedural flaws with the decision to revert the position. However, the reason given by the USPS was not established; i.e., 'that there was a continuing decline in the mail volume.' It is evident from the documentation submitted that the work performed in this duty assignment was still there. The union showed through documentation that significant overtime was worked after the reversion. Also, PTF's and TE's regularly worked 40+ hours per week."

ABOLISHMENTS

Does a management decision to abolish a duty assignment always result in excessing from the section or installation?

Question # 8 in the Article 37 Section 1 Questions and Answers on page 195 of the JCIM addresses this. It asks, “Does sectional excessing always follow when a duty assignment is abolished in a section which is defined pursuant to Article 30.B.18?” The response is, “No. For example, a duty assignment could be abolished and placed under a different position in the same section (e.g., an FSM Operator duty assignment is abolished and a Mail Processing Clerk duty assignment is created in the same section). This circumstance would result in an abolishment but no excessing because the number of occupied duty assignments in the section is not reduced. Such newly created duty assignment would be posted pursuant to Article 37.3.A.1.”

Article 12.4.D in the Collective Bargaining Agreement states, “In order to minimize the impact on employees in the regular work force, the Employer agrees to separate, to the extent possible, PSEs working in the affected craft and installation prior to excessing any regular employee in that craft out of the installation.”

The language in Article 12.4.D should always be cited in cases in which the Postal Service is abolishing positions and excessing employees from the installation if there are PSE's working in what constitutes Full-Time Duty Assignments.

Article 12.5.A.4 states, “Reassign within an installation employees excess to the needs of a section of that installation.”

Article 12.5.B.3 states, “The Union shall be notified in advance (as much as six (6) months whenever possible), such notification to be at the regional level, except under A.4 above, which shall be at the local level.”

As per Article 12.5.C.4, “In the clerk craft, identify the number of duty assignments remaining within the section occupied by clerks junior to the senior clerk whose duty assignment was abolished or reposted and post for bid to currently qualified clerks within the section.”

In addition, Article 12.5.C.4 states, “In the Clerk Craft, the NTFT MOU requires that if the FTR duty assignment occupied by a senior clerk is reposted as a NTFT duty assignment all duty assignments within the section occupied by junior clerks must be reposted for in-section bidding, except for any reposted duty assignments occupied by junior clerks which are changed sufficiently to meet the reposting requirements in Article 37.3.A.4, and will be posted installation-wide.”

Maximization and Desirable Duty Assignment Tool (MDAT)

Access to MDAT

Officer profiles must be forwarded directly to the Per Capita Department located at APWU Headquarters (202-842-8555). This must be done every time there is an election in the local. The officer profile must contain the officer's name, title, and the term of office. The term of office must contain the month, day, and year the term begins and the month, day, and year the term ends. This is what activates access to the reports in MDAT.

Providing Access To Other Officers And/Or Members Of The Local

The Local President will automatically have access to MDAT. He or she can access MDAT and give access to up to three other officers and/or stewards who will be working in MDAT. For the President to access MDAT, he/she would access the "Members Only" section under the "For Members" tab on www.apwu.org. Then link to MDAT on the right hand side of that page. He or she will then go to the "Admin Access" tab to enter information on other officers and/or stewards who will be working in MDAT.

Requesting Clock Rings For MDAT

Clock rings must be requested in CSV (Comma Separated Values) and PDF format. This must be requested for a ***minimum*** of 14 **full** pay periods. There must be enough data to demonstrate that there is a duty assignment.

This information can be downloaded to a flash drive or e-mailed to an APWU e-mail address.

Available Reports

There will be three reports available for printing or saving:

1. TAC Rings Data Table Report
2. Maximization Bar Chart
3. Possible Duty Assignments

Do Not run the clock rings of Full-Time Regulars in the MDAT program.

Ensure that all three reports (Maximization Bar Chart, TAC Rings Data Table, and Possible Duty Assignments Report) along with the clock rings in PDF format for the employees who's clock rings were used for the MDAT reports have been provided to management at Step 2.

There must be evidence in the file that management has received copies of all three reports and the clock rings in PDF format.

A copy of the MDAT Mission Statement must be included in the file. The current copy has an updated date of July 9, 2018. Copies of all documents used to support the grievance, including the MDAT Mission Statement, must be provided to management at Step 2.

In the Additions and Corrections to the Step 2 decision, include the argument that the decision contains arguments that were not made during the Step 2 meeting. This is a violation of Article 15.2.Step 2(d).



Also, in Additions and Corrections add an argument that the Postal Service has provided no evidence to support their claims. Ensure that any arguments that were made by the Union during the Step 2 discussion are incorporated into the Additions and Corrections.

When appealing the grievance to Step 3, please include a flash drive with all three reports and the clock rings in PDF format.

All grievances ***must*** answer all of the following questions:

